

104 Mass.App.Ct. 1114
Appeals Court of Massachusetts

TODINO
v.
TWITTER, INC.

Decided July 16, 2024
Opinion of the court

MEMORANDUM AND ORDER PURSUANT TO RULE 23.0

As the motion judge accurately pointed out, appellate courts have interpreted § 230 as providing extremely broad immunity to those in the defendants' position. Such immunity applies where "the defendant (1) is a provider or user of an interactive computer service; (2) the claim is based on information provided by another information content provider; and (3) the claim would treat the defendant as the publisher or speaker of that information." *Massachusetts Port Auth. v. Turo Inc.*, 487 Mass. 235, 240 (2021), quoting *Doe v. Backpage.com, LLC*, 817 F.3d 12, 19 (1st Cir. 2016), cert. denied, 580 U.S. 1083 (2017). As to the first criterion, it is uncontested that the identified defendants qualify as providers of an "interactive computer service" as that term is used in § 230. Todino also does not appear to contest the second criterion, namely that the defendants were not the creators of

On April 30, 2021, the plaintiff, James Todino, filed defamation actions against ten sets of defendants. The ten cases were consolidated by order dated May 6, 2021, although one of the cases (*James Todino vs. PayPal*, Middlesex Super. Ct., No. 2181CV00965) subsequently was removed to Federal court, and is not a part of this appeal. The appeal before us focuses on judgments entered in four of the remaining cases: those brought by Todino against defendants Twitter, Inc.; Pinterest; Google, Inc.; and Facebook, Inc. In each of those cases, a Superior Court judge allowed motions

The third criterion also applies, because the essence of Todino's claims is that the identified defendants are liable for publishing the content that a third party had posted. Todino seeks to avoid the application of this criterion by maintaining that he is suing the identified defendants not for posting the content, but for refusing to remove it. However, none of the cases draws such a distinction. To the contrary, the cases establish that whether to withdraw a posting is an editorial decision covered by § 230 immunity, and that such immunity

TWITTER, INC., & others¹ (and eight companion cases²). 23-P-588 | Entered: July 16, 2024 By the Court (Milkey, Shin & Englander, JJ.3)

the content at issue.⁶

238 N.E.3d 826

"applies even after notice of the potentially unlawful nature of the third-party content." *Universal Communication Sys., Inc. v. Lycos, Inc.*, 478 F.3d 413, 420 (1st Cir. 2007). Recasting the defamation claim as one for negligence does nothing to save it from falling within § 230's ambit. We are unpersuaded by Todino's additional arguments. For example, while it is true that § 230 does not shield any party from

criminal liability, see 47 U.S.C. § 230(e)(1), Todino has not alleged that the identified defendants have violated any criminal statutes and, in any event, whether to enforce such laws would fall to the relevant prosecutors, not to Todino. For completeness, we note a procedural issue not addressed by any party. In each of the four actions that are the focus of this appeal, Todino joined as a defendant the unidentified user(s) who had posted the content (referenced as “John Doe”). Of course, John Doe “himself” is not entitled to § 230 immunity. In his memorandum of decision and order allowing the identified parties’ motions to dismiss, the judge did not address Todino’s claims against John Doe. Nevertheless, the

various judgments of dismissal that entered are not limited to the claims that Todino brought against the identified parties. Rather, those judgments ordered simply that Todino’s “Complaint be and hereby is dismissed.” In his brief, Todino raises no argument that his John Doe claims were improperly dismissed. Accordingly, such arguments are not before us.⁷ See note 3, *supra*. The judgments of dismissal entered in this case and in the eight companion cases are affirmed. We additionally affirm the orders denying Todino’s motions for reconsideration. So ordered. Affirmed